

October Term, 1867

Saturday the 5th October

Samuel Barnes Complt. vs Mary Barns and others Defts. in Chancery.

On Motion of Samuel Barnes Complainant in said suit, Napoleon B. Cabell is assigned as guardian ad litem to the infant Defendants Eunice Barns, Alice Barns, Marinea Barns (sometimes called Bobby Barnes), James B. Barns, Betty Barns and William C. Barns, to defend their interest in this suit.

Tuesday the 10th day of December 1867

Present the same Judge as on yesterday.

The proceedings of yesterday were this day read and being examined and corrected were signed by the Judge.

Samuel Barnes, Complt. vs Mary Barnes & others, Defts. — In Chancery.

On motion of Napoleon B. Cabell guardian ad litem for Eunice, Alice, Marina, James B., Betty, & Wm Clifford Barnes, infant Defts. in this suit, he hath leave to appear and file his answer for the said infants. Whereupon the said answer is filed.

Ordered that this Court be adjourned until tomorrow morning 9 O'Clock.

Friday the 13th day of December 1867

Present the same Judge as on yesterday.

The proceedings of yesterday were this day read and being examined and corrected were signed by the Judge.

Samuel Barnes Complt. vs Mary Barnes & others Defts. — In Chy.

This cause this 13th day of December 1867, came on to be heard upon the Bill and Exhibits filed therewith, the Joint and several answer of Eunice Barnes, Alice Barnes, Marina (Bobby) Barnes, James B. Barnes, Betty Barnes, and William C. Barnes, infants under the age of twenty one years, by Napoleon B. Cabell, their Guardian ad litem, assigned by the Court to defend them in this suit, and the bill was taken for confessed as to the other Defendants mentioned therein, and was argued by counsel—

Decree

On consideration whereof the Court doth adjudge, order and decree that the land mentioned in Complainant's bill be partitioned equally, having regard to quality, value and quantity, among the several devisees of Samuel I. Cabell, deceased, that is to say:

that one eleventh part thereof be assigned to Samuel Barnes, the Complainant;

one eleventh part thereof be assigned to Mary Barnes;

one eleventh part thereof be assigned to Elizabeth Toney, subject to the marital rites of her husband Wm. I. Toney;

one eleventh part thereof be assigned to Lucy Wiley, subject to the marital rights of her husband Nathaniel Wiley;

one eleventh part thereof be assigned to Mary Jane Berry;

one eleventh part thereof be assigned to Eunice Barnes;

one eleventh part thereof be assigned to Alice Barnes;

one eleventh part thereof be assigned to Marina (sometimes called Bobby) Barnes;

one eleventh part thereof be assigned to James B. Barnes;

one eleventh part thereof be assigned to Betty Barnes;

and one eleventh part thereof be assigned to William C. Barnes.

And for the purpose of effecting such partition the Court doth order that David L. Ruffner, who is a practicable Surveyor, Samuel Rush, Lawson S. Brooks, John S. Brown, and John A. Warth, who are hereby appointed Commissioners for that purpose, any three or more of whom may act, do assign and allot to the several persons before mentioned, the respective shares and proportions aforesaid mentioned by metes and bounds; and if in their opinion such partition of the said real estate cannot be made in kind without loss or injury to the parties, then the said Commissioners will report that fact to this Court, and the reasons upon which their opinion is founded, with the real value of the estate; and the said Commissioners are directed to report their proceedings to the Court and any other matter deemed pertinent by themselves, or required by the parties.

Transcriber's Notes

The entry of 5 October 1867 spells the surname "Barns" for Mary and the children; it is transcribed as written. The 10 and 13 December entries use "Barnes."

The daughter's name appears as "Marinea" on 5 October and "Marinia" on 10 and 13 December. The youngest son is "Wm Clifford Barnes" on 10 December and "William C. Barnes" on the other pages.

Readings I am less sure of: the husband's initial in "Wm. I. Toney" (could be J.), "practicable" (could be "practical"), and "aforesaid mentioned" in the commissioners' charge. In the line for Mary Barnes, the word "assigned" is written above the line on the page.